

of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on the motion to consolidate hearings.

7. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: VACATE VOID UNDER CCP 473 DUE TO FRAUDULENT SERVICE AND DEPRIVATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on this motion.

8. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: FOR RECONSIDERATION OF ORDER GRANTING DEF'S MOTION TO COMPEL ARBITRATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Theodore-Josheph Vigil's Motion for Reconsideration of the July 18, 2025, Order granting Defendant Future Ford of Concord's Motion to Compel Arbitration.

For the reasons explained below, **Plaintiff's Motion for Reconsideration is denied.**

Procedural Background

This case is about alleged predatory lending practices surrounding the purchase of a 2022 Ford Explorer ST that took place on September 19, 2024. (Complaint at pp.2-6.)

Plaintiff filed this suit against Defendant on January 8, 2025. Plaintiff then filed a First Amended Complaint ("FAC") on February 14, 2025. Defendant filed its Motion to Compel Arbitration on March 21, 2025.

On May 1, 2025, in response to Plaintiff's written discovery and given the fact that the motion to compel arbitration had been filed and the hearing was set for after the discovery would be due, Defendant filed an ex parte application for an order staying the case pending resolution of its motion to compel arbitration which was granted with the caveat "except discovery related to motion" ie the parties were allowed to conduct narrowly tailored discovery for related to the motion to compel arbitration. (Crowell Decl. ¶ 3, Ex. B.)

Defendant's Application was granted and filed with the Court, but Defendant failed to serve the signed order on Plaintiff. According to Defendant's counsel, Plaintiff was present at the Ex-Parte hearing and Plaintiff was given the option to wait for counsel to provide a hard copy at the courthouse or to obtain the order once it was available online. (Crowell Decl. ¶¶ 10-14.)

On August 14, 2025, Defendant's counsel emailed Plaintiff a letter offering the opportunity to propound discovery related to the motion to compel arbitration as provided by the Ex Parte Order. (Crowell Decl. ¶ 15-16, Ex. B and H.) Plaintiff did not serve any discovery in response to Defendant's counsel August 14, 2025, letter. (Crowell Decl. ¶ 17.)

Request for Judicial Notice

Defendant requests judicial notice of two documents from the United States District Court, Eastern District of California, Case No. 2:25-CV-0629 DAD AC PS. The first document, Exhibit F, is Plaintiff's original Complaint, and Exhibit G, is an Order Adopting Findings and Recommendations, Dismissing Plaintiff's Complaint and Denying Motion for a Temporary Restraining Order and Preliminary Injunction. The case filed in the Eastern District is a case filed by Plaintiff in federal court with substantially similar facts and allegations against Defendant. The Court may take notice of both exhibits under Evid. Code § 452(d) because both documents are records of a United States Court.

While judicial notice may be taken of the *existence* of court records, "the truth of matters asserted in such documents is not subject to judicial notice." (*OneTaste Inc. v. Netflix, Inc.* (2025) 116 Cal.App.5th 174, 195, citing *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Therefore, the Court is taking judicial notice of the existence of both District Court filings but is not taking judicial notice of the truth of the contents of the documents. (*Magnolia Square Homeowners Ass'n v. Safeco Ins. Co.* (1990) 221 Cal.App.3d 1049, 1056-57.) Defendant's requests are unopposed and **granted**.

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, "based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states

“what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

A trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

Plaintiff Does Fail to Present Any New Facts, Circumstances or Law

Plaintiff argues new facts and circumstances and does not include any argument of new laws.

In the August 11, 2025, Order granting Defendant’s Motion to Compel Arbitration, the Court pointed out the proof of service of the Ex-Parte Application which included a proposed order indicated that Plaintiff was served on April 25, 2025. (Motion at p. 3: 14-18.) Plaintiff complains he never received notice of the Entry the signed order granting Defendant’s May 1, 2025, Ex-Parte Order to stay the case except for “discovery related to the motion” i.e. the motion to compel arbitration. (Crowell ¶ 11; Ex. B.)

As Defendant points out, this is not a new fact as Plaintiff admits that he raised this issue at the July 18, 2025, hearing. (Opposition at p. 6: 14-19; citing Motion at p. 3: 14-23.)

A motion for reconsideration must be supported by "new or different facts, circumstances or law." (CCP § 1008(b).) The party seeking reconsideration must base its motion "upon newly discovered facts, circumstances, or law." (*The New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 208.) The moving party must also provide "a satisfactory explanation for the failure to make the showing at or before the time the challenged order was issued." (*Id.*) "The information must be such that the moving party could not, with reasonable diligence, have discovered or produced it." (*Id.* at 213.) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Plaintiff wholly fails to satisfy this burden.

Defendant’s Failure to Provide Notice of the Ex Parte Order Does Not Prejudice Plaintiff Right to Limited Discovery Concerning the Arbitration Motion

Plaintiff argues that Defendant’s failure to serve the signed May 1, 2025, Ex-Parte Order constituted a due process violation that deprived Plaintiff of his constitutional right to notice and opportunity to respond, effectively forcing Plaintiff into an arbitration process without legal notice of the stay. (Motion at p. 4: 3-9.) Plaintiff contends that the Court’s ruling mischaracterizes Plaintiff’s ability to respond or challenge the arbitration motion, wrongly presumes that key order was served, and unfairly penalizes Plaintiff for not conducting discovery that was explicitly stayed.

First, Plaintiff was present at the Ex-Parte hearing and received actual notice of the ruling specifically including the court’s allowance of discovery related to the motion. (Crowell Decl. ¶¶ 10-11.) Second, after the hearing, Defendant’s counsel offered to provide Plaintiff with a conforming copy of the order and advised Plaintiff that the order would be available online. Plaintiff left the hearing without requesting a conformed copy of the signed order. (Crowell Decl. ¶ 12.) Third, Plaintiff’s right to

discovery regarding the Motion to Compel Arbitration was not dependent on the Notice of Entry of Order of the May 1, 2025, Ex Parte ruling. Plaintiff had the right to conduct such discovery before the May 1, 2025 and after the May 1, 2025 hearing. Plaintiff was present at the May 1, 2025 hearing when the court preserved and pronounced his right to conduct such discovery in its ruling. Fourth, on August 14, 2025, Defense counsel Crowell emailed Plaintiff offering him “the opportunity to propound discovery “related to the motion.” Plaintiff did not serve any discovery regarding the motion to compel arbitration in response to Defense Counsel’s invitation. (Crowell Decl. ¶15, Ex. H) The court finds Plaintiff was not prejudiced as to his right to conduct discovery on the issue of the motion to compel for want of service of Notice of the Entry of the May 1, 2025 ruling.

“Where the litigant starts the discovery process without prior court intervention [the] burden is then on the party seeking to deny that right.” (*Kramer v. Superior Court of Los Angeles County* (1965) 237 Cal.App.2d 753, 759, citing *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal.2d 355, 379.) While Defendant was able to stay the case as to all other topics of discovery, Plaintiff always had the right to discovery related to the Motion to Compel Arbitration and the May 1, 2025, Ex Parte only confirmed is pre-existing right to do so. Thus, the failure of Defendant to serve Defendant with the signed May 1, 2025, Ex Parte order did not infringe on his right to conduct discovery regarding the Motion to Compel Arbitration. It is also noteworthy that Plaintiff does not complain of any unanswered discovery responses related to the motion to compel arbitration.

Conclusion

Based on the above, **Plaintiff’s Motion for Reconsideration is denied.** The matter remains stayed in view of the referral to arbitration.

9. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer filed by defendant County of Contra Costa County is **sustained without leave to amend**. The motion to strike is **denied as moot**. County shall prepare a proposed judgment, separate from any order on this motion, send to plaintiff for approval as to form, and submit to the Court.

I. Factual Background

The First Amended Complaint at issue here (“FAC”) involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-014-5) was purchased in February of 2014 while the other (APN 264-081-013-7) was purchased in February of 2016. (See FAC, ¶¶1, 10.)

Plaintiff contends, essentially, that the County sold him the parcels despite lack of an easement. (FAC, ¶¶7-9.)

Plaintiff filed his complaint against the County on January 29, 2025, alleging four causes of action (labeled “(1) Property Sale With Incorrect Title Deed and Disclosures; (2) Sale of Landlocked